

Har Prasad v. State of U.P. — recovery citation relegated to Executive Engineer

Allahabad High Court · Division Bench · 18 December 2019 · Writ-C No. 39707 of 2019 · WRIT - C No. 39707 of 2019 · **Writ disposed; petitioner directed to appear before the Executive Engineer with objections; speaking final order within four weeks; coercive action stayed seven weeks; Section 127 appeal left open if aggrieved.**

HEADNOTE

A writ seeking certiorari to quash a 2014 electricity recovery citation of Rs. 97,030, alleging coercive action without hearing and without following the U.P. Electricity Supply Code 2005, was disposed of without examining the merits. The High Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order, stayed coercive action for a limited period, and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003. Non-appearance would revive the citation.

FACTUAL SUMMARY

Har Prasad @ Prasadi Lal petitioned the Allahabad High Court to quash a recovery citation dated 20 June 2014 for Rs. 97,030 passed by respondent no. 4. He alleged that the electricity authorities were taking coercive action without an opportunity of hearing and without following the U.P. Electricity Supply Code 2005. After an adjournment on 5 December 2019 for instructions, counsel for the petitioner and for the electricity department were heard on 18 December 2019.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

recovery-citation-relegation-to-executive-engineer-then-s127

HOLDING

Where a consumer seeks to quash a recovery citation alleging coercive recovery without hearing and without following the U.P. Electricity Supply Code 2005, the High Court may, without deciding those merits, direct the consumer to appear before the Executive Engineer with objections and evidence, require a speaking and reasoned final order within a fixed time, stay coercive action for a limited period or until that objection is decided, and leave the consumer to a Section 127 appeal if aggrieved by the final order. Default in appearing or filing the objection revives the citation and vacates the interim protection. ¶ 1

PRINCIPLE TAGS

relegation-to-section-127-appeal-on-merits-limitation-not-examined

The Division Bench did not test the 20 June 2014 recovery citation, the alleged Supply Code 2005 breaches, or the delay since 2014; it sent the consumer to the Executive Engineer for a final order and, if still aggrieved, to a Section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 20 JUNE 2014 RECOVERY CITATION OF RS. 97,030 WAS ISSUED IN ACCORDANCE WITH THE U.P. ELECTRICITY SUPPLY CODE 2005, AND WHETHER COERCIVE RECOVERY WITHOUT HEARING WAS LAWFUL

¶ 1

